



POLICE DEPARTMENT

October 25, 2010

MEMORANDUM FOR: Police Commissioner

Re: Detective Marques Stewart
Tax Registry No. 899878
28 Precinct Detective Squad
Disciplinary Case No. 86214/10

The above-named member of the Department appeared before me on July 20, 2010, charged with the following:

1. Detective Marques Stewart, assigned to the 28th Detective Squad, on or about May 15, 2009, while at the 28th Precinct Detective Squad, acted discourteous to Lieutenant Catherine Mylott, to wit: when Lieutenant Catherine Mylott directed Detective Marques Stewart to drive a truck to Flushing Meadows Park in Queens County to recover and transport evidence, Detective Marques Stewart, in a discourteous manner, asked Lieutenant Catherine Mylott, in sum and substance, for the correct spelling of her name so that he would have it if he had an accident and was going to sue someone.

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT – GENERAL
GENERAL REGULATIONS

2. Detective Marques Stewart, assigned to the 28th Detective Squad, on or about May 15, 2009, failed to make complete entries in his Activity Log as required.

P.G. 212-08, Page 1, Paragraph 1 – ACTIVITY LOGS – COMMAND
OPERATIONS

The Department was represented by Scott Rosenberg, Esq., Department Advocate's Office, and the Respondent was represented by Philip Karasyk, Esq. and Adam Etman, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to Specification No. 1 and Guilty to Specification No. 2. A stenographic transcript of the

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Specification No. 1 and Guilty to Specification No. 2. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty of Specification No. 1. The Respondent, having pleaded guilty, is found Guilty of Specification No. 2.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Lieutenant Catherine Mylott as its sole witness.

Lieutenant Catherine Mylott

Mylott is a special projects lieutenant with Detective Borough Manhattan (DBM) reporting directly to the commanding officer of the Detective Bureau in Manhattan and had previously worked in the 46 Precinct. Her duties include following up on active cases, assisting in preparation for Compstat, and any necessary administrative duties. She was appointed to the Department on July 15, 1986, promoted to the rank of sergeant around July 15, 2001, and assumed her current rank of lieutenant on June 30, 2006.

On the date in question, May 15, 2009, Mylott testified to having worked a tour from 10:00 a.m. until 6:35 p.m. and further testified that she had a conversation with Detective Valentin at approximately 10:00 a.m. Mylott described that conversation as pertaining to a criminal investigation and a sergeant "who was assigned to the Midtown North Squad was out in Flushing Meadow Park retrieving evidence from a rash

of robberies that were occurring in the 7th Precinct ” She further recalled that Valentin was instructed by a captain to have someone drive a box truck to retrieve ATM machines from the lake in the park, and thus Valentin called the Respondent to help with the investigation as “he was one of the people trained to drive the box truck ” Mylott then said that Valentin stated that the Respondent “didn’t want to or that he was opposed to” driving the truck as requested

After that phone call, at approximately 10 30 a.m. or 11 00 a.m. Mylott called the Respondent at the 28 Detective Squad and instructed him to drive the truck to Flushing Meadow Park to help the sergeant Mylott testified that the Respondent was chosen for this task as he was the only person available to the Bureau at the time that was trained to drive that specific type of truck She said that she knew of his qualification as she believed it was indicated on his “10 card,” which she described as a card that lists a member of the service’s “pedigree information special qualifications firearms assigned shield, [and] command ” Mylott then testified that the Respondent “wasn’t happy” about being asked to drive the truck, and he told her that “he resented being asked” as he felt that there were others who could do this job, and he was insulted due to his number of years in the Department She then explained to him that he was the only one working with the training, but he still insisted that “he was uncomfortable driving the truck ”

When Mylott responded that he was ‘going to have to do it ’ the Respondent requested her full name and tax number so if there was an accident he could sue the Department and use her name in the suit She described the Respondent’s overall demeanor during their phone conversation as “combative, abrasive, whereas she

described herself as speaking professionally without yelling, and indicated that she gave the information he requested. Mylott then asked to be transferred to Detective Rosado, who had answered the phone when she initially called the squad, to ask that he accompany the Respondent in case there was an accident and the Respondent did ultimately drive the box truck.

Upon questioning by the Court, Mylott testified that she had not filed a complaint nor did she initially tell anyone about this phone conversation. She explained that the commanding officer of the 28 Precinct received a call from someone in the squad about this situation, and when it was passed on to the commanding officer of Manhattan North Detective Operations this situation became the current case. Mylott said that she was not involved with this complaint being filed against the Respondent, and that she only recounted her conversation from May 15, 2009, when Lieutenant Franqui from the 28 Precinct called to inquire about the situation, though he already knew the gist of the incident.

Mylott asserted that she did not initiate the command discipline, and was not entirely sure who did, but knew that Franqui contacted her regarding the Respondent's discourtesy. She also knew that Inspector AnnMarie Connell instructed Captain Girven to issue the actual command discipline. Mylott testified that, while other people were in her office when she had the phone conversation in question with the Respondent, those other people had "no idea of what he was saying" and she "didn't investigate those charges."

On cross-examination, Mylott acknowledged that she was not "sufficiently offended by [the Respondent's] actions," and affirmed that she did not bring any action

against him. She reiterated that she was not sure who initiated the action. She did agree that an official Department interview on November 17, 2009, was where she first acknowledged the Respondent's discourteous behavior towards her, though without going into detail. It was stipulated that she did not describe during her official Department interview what she meant by "discourteous."

Mylott upon further cross-examination, that though she responded affirmatively to questions about the Respondent's discourtesy, she did not use the words "combative" or 'abrasive' to describe his behavior during that official Department interview. She further admitted that during their conversation the Respondent never used profane language with her, though she disputed the fact that he was not sarcastic. She also admitted that he did not yell, nor did he state that he would not follow her direct order and that, in the end, he did in fact follow her order. Mylott also acknowledged that when he asked for her name it was within his right to do so upon receiving her order.

The Respondent's Case

The Respondent called Detective Rosado as a witness and testified in his own behalf.

Detective Ivan Rosado

Detective Ivan Rosado is assigned to the 28 Precinct Detective Squad, where he works with Detective Flowers, Detective Simmons and the Respondent. He was working on May 15, 2009, during the day tour and was a couple of feet away, when the Respondent received the call at issue from Mylott. Due to his close proximity, Rosado stated that he could hear, 'on [the Respondent's] end,' the conversation with Mylott. He

said that he did not hear the Respondent refusing to drive the box truck. He further testified that he did not hear the Respondent "raise his voice," respond sarcastically, "use any profanity," or explicitly state that he would not follow Mylott's order.

Rosado said that he heard the Respondent express his discomfort in having to "driv[e] some truck that was required [of] him to drive" as he had not "driven it for a very long time" and then ask Mylott for her name. He described the Respondent's overall tone during the phone call as being at a normal level, with no "yelling [or] screaming." After this overheard exchange, the call was transferred to Rosado, who recalls Mylott telling him to accompany the Respondent to pick up "slot machines." He testified that Mylott did not "seem upset" when he received the transferred call, but that she asked him if he was "in a better mood" than the Respondent.

On cross-examination, Rosado acknowledged that he was an alternate Detective Endowment Association delegate with the 28 Squad. He also admitted that he had spoken "a long time ago" with the Respondent about this case, that he had represented the Respondent as his delegate at his official Department interview, and was present with Lieutenant Mayo and Lieutenant Albina when the Respondent was interviewed at that hearing. In regards to the phone call at issue, Rosado agreed that he did not overhear, nor could remember, the entire conversation, especially what was said by Mylott. He denied hearing the Respondent say, "Why me," asking for Mylott's tax number, or alluding to wanting Mylott's information in case "he got into an accident, [so] he would know who to sue." Instead, Rosado only acknowledged hearing the Respondent express his discomfort in driving the truck and requesting Mylott's name.

Rosado denied remembering in "vivid details" the conversation between Mylott

and the Respondent, but he did state that he remembered the gist of the phone call. He agreed that at the time that the conversation took place, he had "no way of knowing [it] would ultimately result in a possible disciplinary action" nor could he have foreseen that it would cause a trial. Rosado acknowledged having a "good working relationship" with the Respondent, but denied wanting to "help him out," maintaining that he only intended to "say the truth about what happened."

On redirect examination, Rosado reiterated that his positions as the Respondent's partner and as the alternate delegate for the 28 Squad do not "affect [his] ability to tell the truth."

The Respondent

The Respondent appointed to the Department in April 1991, promoted to detective in June 1996, and has been assigned to the 28 Precinct Detective Squad as a detective investigator since January 2007.

On May 15, 2009, the Respondent received a call from DBM, specifically from Valentin who asked him for a favor, to "drive a truck to Flushing Meadow Park to pick up some slot machines" and drop them off at the 7 Precinct. The Respondent said that he told Valentin he was uncomfortable driving that truck as he had not done so "in a very, very long time" and requested that she find someone else to do the job. He stated that he was trained to drive the truck in 2004, and had not driven one since then. He then testified that Valentin told him not to worry about it and asked to be transferred to Detective McLouis, who also was trained to drive the truck. When the Respondent told her that that McLouis was at training, he stated that Valentin then ended the conversation.

again telling him not to worry about it

The Respondent said that after Valentin's call, he received the call from Mylott. Respondent recounted this conversation as similar to the one he had with Valentin, with Mylott asking him to get the truck to pick up the "slot machines" from Flushing Meadow Park and drop them off at the 7 Precinct. He testified that he responded in the same way, telling Mylott that he had not driven the truck in a long time and was uncomfortable doing so. He added that he "may have mentioned" having been in an accident the last time he was in that type of truck where he was the passenger and the person driving "misjudged the height of the truck and ran into the top of a garage and it ripped the top of the truck off." He then stated that Mylott reiterated that she needed someone to do the job, and that she was not asking him to drive the truck, but that she was giving him an order, which he complied with.

The Respondent said that he never met Mylott, but had heard her name before. He also testified that during their conversation, he never expressed dissatisfaction with his job, raised his voice, spoke sarcastically, nor used profanity. Respondent stated that he did ask Mylott for her name and explained that he did so as she had given him a "lawful order" and he wanted the correct spelling of her name. He insisted that he never told her that he wanted her name so that he could sue her or use her name in a suit. He also said that he never told Mylott that he would not comply with her order due to his respect for rank. The Respondent then explained that as an "ex-military man, who served for nine years up to the rank of Staff Sergeant, he respects both Department rank and all military rank and testified that he has never shown disrespect to "anybody in their rank." [Respondent's Exhibit A is a copy of the Respondent's Activity Log for the day

of the incident]

On cross-examination, the Respondent agreed that the Department trained him to drive a box truck and that on May 15, 2009, he was qualified to drive that sort of truck. He agreed that on that date, while he was working at the 28 Precinct Detective Squad, Mylott asked him to drive a box truck, and he felt "uncomfortable driving that vehicle," but if he was ordered to drive the truck he would. However, he disputed the idea that he was told to drive the truck for the purpose of transporting machines that were part of a criminal investigation. The Respondent then admitted that, when asked to drive the truck, he said something like, "For what do I owe this auspicious occasion to," though he denied that he was speaking sarcastically. He elaborated that he asked that question as he was never told that driving the truck was related to a criminal investigation, nor given any reason as to why he was being asked to complete this task, and he wanted to know why he was being asked driving a box truck to be an "auspicious occasion," nor that it would be a great opportunity for someone of his stature. He stated that he did not mean to be sarcastic, but instead was confused as to why he was asked to do a "menial," clean up task, though he admitted he was not so "articulate" on the phone with Mylott and may have just asked something like "Why me?"

The Respondent agreed that during his official Department interview he said that Mylott told him, "You act like you have a problem with this," and that he responded that he did "have a problem" because she never indicated to him that the task was connected to a criminal investigation. He agreed that as she did not point out that there was a criminal investigation involved with the task, that he took her request to be a favor that, while probably tied to Department business, was personal in nature. He also

acknowledged that when he was asked if he has a problem with picking up the "slot machines" to bring to the 7 Precinct, he said that he did have a problem as he was wearing a three piece suit that day, and did not have the correct attire to change into. He explained that after saying that, he was informed that this was not a request, but rather an order. He also acknowledged that prior to setting foot in the truck, he expressed his discomfort in driving the vehicle and attributed that discomfort to the accident he had described. He then denied that he only said he was uncomfortable because he felt that he "had too much seniority on the job" to drive the truck.

In regards to asking Mylott for her name at the end of their conversation, Respondent admitted that he did make that request, but disputed asking her for her tax number or requesting her name for purposes of naming her in a suit in the event of an accident. He also acknowledged being present at a February 3, 2010, official Department interview that included Mayo and answering the questions Mayo asked of him. Respondent acknowledged that during that line of questioning he recounted an exchange during the phone conversation where he informed Mylott that he was asking for her name in case litigation was brought against him. He stated there

I asked her for her correct spelling of her name and she asked me, 'Why are you writing down my name?' I said, 'well, first of all, you're telling me you are a lieutenant of the police department, you're giving me a lawful order, I want to know who I'm talking to. Second, as I told you I don't feel comfortable operating that piece of machinery. If I do, in fact, have an accident your name is being in the litigation as well as my name.'

FINDINGS AND ANALYSIS

The Respondent is charged, in Specification No. 1 with being discourteous to Lieutenant Mylott in that when Mylott directed the Respondent to drive a truck to Queens County to recover and transport evidence, he, in a discourteous manner, asked Mylott, in sum and substance for the correct spelling of her name so that he would have it if he had an accident and was going to sue someone.

Mylott told this - by Detective Valentin that she was instructed by a captain to have someone drive a box truck to Flushing Meadow Park to retrieve evidence from a lake. Valentin further told Mylott that she called the Respondent to drive that truck because he was trained in the operation of the vehicle. According to Valentin, the Respondent told her in sum and substance that he "didn't want to." Upon hearing of his refusal, Mylott called the Respondent and instructed him to drive the truck to Flushing to help the sergeant at the scene transport the evidence. Mylott explained during her testimony that the reason it was necessary to specifically get the Respondent to drive the truck was because he was the only person available at that time with the training to operate the vehicle.

Mylott described the Respondent's reaction to her direction as he "wasn't happy" about being asked to drive the truck and told her that "he resented being asked because there were others that could do the job. He was also insulted at being asked to do the task because of his seniority in the Department."

At one point Mylott told him that he was the only one available to do the job and she "needed him to do it." The Respondent told her that he was uncomfortable driving the truck, then asked for her "full name, my first name, my last name, and my tax

number, so that if there was—he said if he got into an accident he could sue the Department and he would know exactly who to name in the lawsuit ” Mylott then explained to him that she understood that he felt uncomfortable but again told him that ‘ he was going to have to do the assignment ” Mylott also spoke to Detective Rosado and asked him to accompany the Respondent The Respondent ultimately drove the truck to the location

During Rosado’s testimony he recalled that he was present with the Respondent during his phone conversation with Mylott While he could not hear the Respondent’s entire conversation, he did hear the Respondent express discomfort to Mylott in having to drive a truck that he had not driven in a long time He also heard the Respondent ask for Mylott s name When Mylott spoke to Rosado to ask him to go with the Respondent in the truck, he remembered that she had also asked him if he was “in a better mood” than the Respondent

The Respondent testified that Valentin had asked him to “drive a truck to Flushing Meadow Park to pick up some slot machines” and drop them off at the 7 Precinct He told Valentin that he was very uncomfortable driving the truck because he had not done so “in a very, very long time’ and asked her to find someone else He said that Valentin told him not to worry and asked for another detective who the Respondent said was away at training According to the Respondent, Valentin again told him not to worry and ended the conversation

The Respondent said that after Valentin’s call he received a call from Mylott, who also asked him to drive the truck to pick up the slot machines He also told Mylott that he had not driven the truck in a long time and was uncomfortable doing so Mylott again

told him she needed him to drive the truck and that she was actually giving him an order which he then complied with

The Respondent stated that during their conversation he never expressed dissatisfaction with doing the job nor was he sarcastic with Mylott. He did, however, ask her for her name because she had given him a lawful order and he wanted the correct spelling of her name but never told her he wanted it to use it in a potential lawsuit.

He also stated that he was never told that the reason for driving the truck was related to a criminal investigation nor was he given any reason why he was being asked to do the task. He stated that he was confused as to why he was being asked to do a 'menial' clean up task and may have said to Mylott, "Why me?" He admitted to having 'a problem' with the task because Mylott did not tell him it was connected to a criminal investigation. He stated that he took her request to be a favor that, although Department related, was personal in nature. He also did not want to do the job because he was wearing a suit that day and did not have other clothes to change into.

The Respondent acknowledged that he recalled during his Department interview that he told investigators with regards to asking for her name, "I asked her for her correct spelling of her name and she asked me, 'Why are you writing down my name?' I said, 'well, first of all, you're telling me you are a lieutenant of the police department, you're giving me a lawful order, I want to know who I'm talking to. Second, is I told you I don't feel comfortable operating that piece of machinery. If I do, in fact, have an accident your name is being in the litigation as well as my name.'"

This Court finds Mylott's version of what transpired during her phone conversation with the Respondent to be straightforward and credible. It should be

understood that she was not out to get the Respondent with a made up story and held no animosity towards him in that she made it clear that she did not bring the charges against him and had no intentions of doing so. In addition her version is clearly supported from the testimony at trial, including the Respondent's, he apparently was not pleased with being asked to drive the truck. His displeasure was made apparent to Mylott during her phone conversation with Valentin and the Respondent did not try to hide his dissatisfaction from Mylott or from this Court. Rosado even testified that Mylott asked him if he was in a better mood than the Respondent.

The Respondent admitted asking Mylott for her name, but denies threatening to include her in a possible lawsuit. But here again Mylott's version is supported by the Respondent's statement during his Department interview where he stated, "If I do, in fact, have an accident your name is being in the litigation as well as my name."

Based on the forgoing, this Court concludes that the Respondent was discourteous to Mylott, a superior officer, when he asked for her name and suggested she may be made part of a lawsuit after she ordered him to drive the box truck.

Accordingly, the Respondent is found Guilty as charged.

Under Specification No. 2, the Respondent is further charged with failing to make complete entries in his Activity Log as required.

The Respondent having pleaded Guilty to Specification No. 2 is found Guilty as charged.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined See Matter of Pell v Board of Education, 34 N Y 2d 222, 240 (1974) The Respondent was appointed to the Department on April 30, 1991 Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum

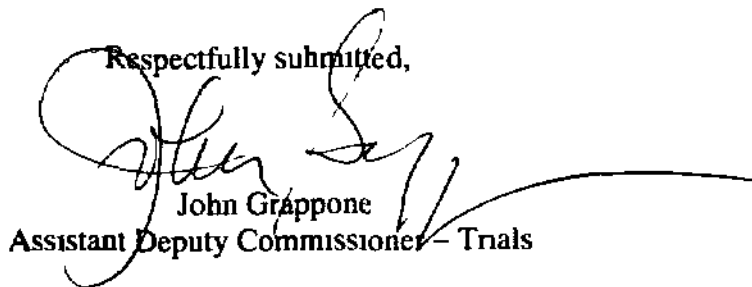
The Respondent has pled Guilty to failing to make complete entries in his Activity log as required He was also found Guilty of being discourteous to Lieutenant Mylott when she directed him to drive the box truck to pick up evidence

When a lawful order is given by an officer in this Department it must be obeyed *without resistance of any kind, no matter how distasteful that order may be to the member* The Respondent received training from the Department in the operation of a box truck and should have been readily available to drive it While the Respondent obeyed Mylott's order, he did so only after complaining to her of his dissatisfaction and his suggestion of a possible lawsuit This type of conduct cannot be tolerated by members of the Department

Accordingly, it is recommended that the Respondent forfeit a penalty of 20 vacation days

APPROVED
JUN 09 2011

RAYMOND W. KELLY
POLICE COMMISSIONER

Respectfully submitted,

John Grappone
Assistant Deputy Commissioner - Trials

POLICE DEPARTMENT
CITY OF NEW YORK

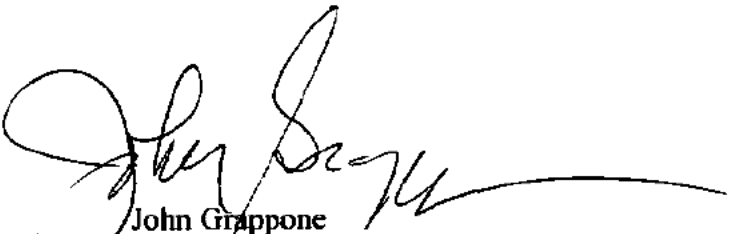
From Assistant Deputy Commissioner – Trials
To Police Commissioner
Subject CONFIDENTIAL MEMORANDUM
DETECTIVE MARQUES STEWART
TAX REGISTRY NO 899878
DISCIPLINARY CASE NO 86214/10

On the last three performance evaluations contained in his personnel file, the Respondent received a rating of 4.0 "Highly Competent," 4.0 "Highly Competent" and 3.5 "Above Competent" [REDACTED]

The Respondent has six Excellent Police Duty and two Meritorious Police Duty medals

The Respondent's prior formal disciplinary record is as follows. On August 28, 2003, the Respondent pled Guilty to charges that he failed to sign out of the roll call on 8 occasions and forfeited 10 vacation days

For your consideration


John Grappone
Assistant Deputy Commissioner [REDACTED] Trials